

TAKEDA PHARMACEUTICAL COMPANY LIMITED v. ANNORA PHARMA PRIVATE LIMITED

Plaintiff:	TAKEDA PHARMACEUTICAL COMPANY LIMITED
Defendant:	ANNORA PHARMA PRIVATE LIMITED
Case Number:	2:2026cv12588
Filed:	September 23, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Esther Salas
Referring Judge:	Alex D Silagi
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None



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Docket Report

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Date Filed	Document Text
September 24, 2026	Filing 6 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of TAKEDA PHARMACEUTICAL COMPANY LIMITED (CALLO, ALEXANDER)
September 24, 2026	Filing 5 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of TAKEDA PHARMACEUTICAL COMPANY LIMITED (SULLIVAN, SARAH)
September 24, 2026	Filing 4 SUMMONS ISSUED as to ANNORA PHARMA PRIVATE LIMITED. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (adc,)
September 24, 2026	Filing 3 AO120 Patent Form filed. (adc,)
September 24, 2026	Case assigned to Judge Esther Salas and Magistrate Judge Alex D. Silagi. (tjg,)
September 23, 2026	Filing 2 Corporate Disclosure Statement by TAKEDA PHARMACEUTICAL COMPANY LIMITED. (LIZZA, CHARLES)

Date Filed	Document Text
September 23, 2026	Filing 1 COMPLAINT against ANNORA PHARMA PRIVATE LIMITED (Filing and Admin fee \$ 405 receipt number ANJDC-17981076) , Related Case Selected, filed by TAKEDA PHARMACEUTICAL COMPANY LIMITED. (Attachments: #1 Exhibit A, #2 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Takeda Pharmaceutical Company Limited (Japan)
Defendant:	Annora Pharma Private Limited (India)
Plaintiff's Counsel:	Saul Ewing LLP
Case Identification:	2:26-cv-12588 , D.N.J., 09/23/2026
Venue Allegations:	Plaintiff alleges venue is proper in the District of New Jersey based on Defendant's business of developing, marketing, and selling generic drug products throughout the United States, including in New Jersey. The complaint further asserts that the district is a likely destination for the accused generic product and that Defendant has previously consented to personal jurisdiction in the district in other patent cases.
Core Dispute:	Plaintiff alleges that Defendant's submission of an Abbreviated New Drug Application (ANDA) to the FDA, seeking approval to market a generic version of Plaintiff's drug LIVTENCITY® (maribavir), constitutes an act of patent infringement.
Technical Context:	The lawsuit concerns a pharmaceutical method patent for the antiviral drug maribavir, which is used to treat cytomegalovirus (CMV) infections in post-transplant patients.
Key Procedural History:	This action was triggered by Defendant's submission of ANDA No. 221113 to the FDA. The patent-in-suit is subject to a terminal disclaimer and is part of a large family of patents and applications stemming from a 2011 application. The complaint notes that Defendant has been a party to numerous prior patent litigations in the District of New Jersey.

Case Timeline

Date	Event
2010-10-28	'368 Patent Priority Date
2026-06-23	'368 Patent Issue Date
2026-09-23	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,661,368 - "Maribavir Isomers, Compositions, Methods of Making and Methods of Using"

Patent Identification: U.S. Patent No. [12,661,368](#) ("the '368 Patent"), "Maribavir Isomers, Compositions, Methods of Making and Methods of Using," issued June 23, 2026.

The Invention Explained

Problem Addressed: The patent's background section describes the "unexpected discovery that maribavir may isomerize under in vivo conditions" into other molecular forms that may have lower biological activity '368 Patent, col. 2:63-65 '368 Patent, col. 2:21-29 This isomerization is believed to dilute the effective concentration of the drug, reducing its therapeutic efficacy. The patent suggests this phenomenon may explain the failure of a prior Phase 3 clinical trial (the "300 Study"), which allowed dosing under "fed conditions" that may have promoted such isomerization '368 Patent, col. 2:30-62

The Patented Solution: The invention claims to solve this problem by providing specific methods of using maribavir that mitigate isomerization and enhance the drug's bioavailability and efficacy '368 Patent, abstract '368 Patent, col. 3:9-15 The patented methods involve administering a specific dose (400 mg twice daily) in an "immediate release formulation," which is functionally defined as releasing the drug within 60 minutes, to ensure a sufficient concentration of the active compound is achieved in the body '368 Patent, col. 7:16 - col. 8:20

Technical Importance: This technical approach provides a method for improving the clinical effectiveness of maribavir by controlling for an in-vivo chemical transformation, thereby potentially rescuing a promising antiviral drug for a vulnerable patient population '368 Patent, col. 2:36-47 '368 Patent, col. 3:9-15

Key Claims at a Glance

The complaint asserts infringement of "one or more claims" of the '368 Patent Compl. ¶129 The patent contains two independent claims.

Independent Claim 1: A method for treating a CMV infection by orally administering 400 mg of maribavir twice a day, where the compound is in an "immediate release formulation" that "releases said compound from said formulation by dissolution in less than 60 minutes." '368 Patent, col. 7:16 - col. 8:8

Independent Claim 2: A method for treating a CMV infection by orally administering 400 mg of maribavir twice a day, where the compound is in an "immediate release formulation" that "releases said compound from said formulation in vivo in less than 60 minutes following administration." '368 Patent, col. 8:9-20

The patent contains no dependent claims.

III. The Accused Instrumentality

Product Identification

The accused instrumentality is "Annora's ANDA Product," identified as "maribavir tablets, 200 mg" for which Annora submitted ANDA No. 221113 seeking FDA approval [Compl. ¶22](#)

Functionality and Market Context

The product is intended to be a generic version of Takeda's LIVTENCITY®, an approved drug indicated for treating post-transplant CMV infection in certain patients [Compl. ¶5](#) [Compl. ¶25](#) The complaint is based on the statutory act of infringement under 35 U.S.C. § 271(e)(2), which arises from the submission of an ANDA for a patented drug [Compl. ¶27](#) The core of the infringement allegation rests on the premise that the FDA-approved labeling for LIVTENCITY®, which Annora's generic product would adopt, "instructs and encourages" administration in a manner that practices the methods claimed in the '368 Patent [Compl. ¶8](#)

IV. Analysis of Infringement Allegations

No probative visual evidence provided in complaint.

The complaint does not contain a claim chart or detailed, element-by-element infringement allegations. The infringement theory is based on the filing of ANDA No. 221113 as a statutory act of infringement under 35 U.S.C. § 271(e)(2) [Compl. ¶27](#) For post-approval infringement, the theory is one of induced infringement, where the proposed product label for Annora's ANDA Product will allegedly instruct healthcare providers and patients to use the generic drug in a way that directly infringes the method claims of the '368 Patent [Compl. ¶8](#) [Compl. ¶30](#)

Because Annora's product is a 200 mg tablet [Compl. ¶22](#), Plaintiff's infringement theory suggests that the label will instruct patients to take two tablets twice a day to achieve the "400 mg twice a day" dosage recited in the claims. The theory further presumes that Annora's product, as a generic equivalent to LIVTENCITY®, will be an "immediate release formulation" that meets the release-rate limitations of the claims.

Identified Points of Contention:

Scope Questions: A central question will be whether the administration instructions in the proposed label for Annora's 200 mg tablets direct a use that falls within the scope of the claimed "400 mg twice a day" method.

Technical Questions: A key factual dispute may arise over whether Annora's ANDA product qualifies as an "immediate release formulation" that meets the specific functional limitations of Claim 1 ("dissolution in less than 60 minutes") or Claim 2 ("in vivo in less than 60 minutes"). As an ANDA filer, Annora must demonstrate that its product is bioequivalent to LIVTENCITY®, and the characteristics of the LIVTENCITY® formulation will be central to this inquiry.

V. Key Claim Terms for Construction

The Term: "immediate release formulation"

Context and Importance: This term is critical as it defines the drug delivery system required by both independent claims. The patent's narrative hinges on using a specific formulation type

to avoid the isomerization problems of prior studies. Practitioners may focus on this term because its construction will determine whether Annora's generic product, designed to be bioequivalent to LIVTENCITY®, falls within the claims' scope.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification provides a functional definition: an "immediate release" formulation is one where "release of drug from drug formulation by dissolution is less than 60 minutes or is otherwise release from the drug formulation in less than 60 minutes" '368 Patent, col. 5:31-34 This language may support a broad, purely time-based definition.

Evidence for a Narrower Interpretation: The claims themselves provide two distinct definitions. Claim 1 uses an **in vitro** standard ("by dissolution"), while Claim 2 uses an **in vivo** standard. A party could argue that the term's meaning is tied to these specific contexts and that one cannot be used to interpret the other. A defendant could also argue that the term must be construed in light of the patent's stated objective of avoiding in-vivo isomerization, potentially limiting it to formulations proven to achieve that goal.

The Term: "releases said compound from said formulation in vivo in less than 60 minutes following administration" (from Claim 2)

Context and Importance: This limitation distinguishes Claim 2 from Claim 1 and requires proof of the drug's behavior within the human body, not just in a lab test. Its construction is vital because it sets a different, and potentially more complex, standard for infringement.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: A party may argue this is a standard pharmacokinetic parameter that is well understood in the art, referring to the time required for the drug to be released from its dosage form into the body for absorption, and should be given its plain and ordinary meaning.

Evidence for a Narrower Interpretation: A defendant may question whether the patent provides sufficient guidance on how to measure this **in vivo** release with the precision required by the claim (i.e., "in less than 60 minutes"), potentially raising an indefiniteness challenge under 35 U.S.C. § 112. The specification does not appear to detail a specific protocol for measuring this parameter.

VI. Other Allegations

Indirect Infringement: The complaint alleges induced infringement under 35 U.S.C. § 271(b), stating that Annora's product label will intentionally encourage and instruct healthcare professionals and patients to perform the patented method Compl. ¶8 Compl. ¶30 It is alleged that Annora has "knowledge of the '368 patent" and its infringement Compl. ¶30 The complaint also pleads contributory infringement under § 271(c), alleging the ANDA product is "especially adapted" for an infringing use and has "no substantial non-infringing use" Compl. ¶31

Willful Infringement: The complaint does not use the word "willful" but does allege the case is "exceptional" and requests attorneys' fees under 35 U.S.C. § 285 Compl. ¶33 The basis for this appears to be the allegation that Annora acted with knowledge of the '368 Patent when filing its ANDA Compl. ¶30

VII. Analyst's Conclusion: Key Questions for the Case

- ☐ A core issue will be one of **induced infringement**: does the proposed product label for Annora's generic 200 mg tablets necessarily instruct users to administer the drug in a manner that practices every step of the claimed "400 mg twice a day" method, including the "immediate release" limitations?
- ☐ A second key issue will center on **claim scope and evidence**: how will the court construe the distinct **in vitro** ("dissolution") and **in vivo** release limitations in Claims 1 and 2, and what scientific evidence will be required to prove that Annora's ANDA product meets these functional requirements?
- ☐ A third question relates to **validity**: will the patent's claims to a specific dosing and formulation method be found valid in light of prior art, including the very clinical studies the patent cites as having failed? The patent's reliance on a failed study as a basis for its invention may become a central point of dispute.

Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 1 of 11 PageID: 1 Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540 (973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 UNITED STATES DISTRICT COURT DISTRICT OF NEW JERSEY TAKEDA PHARMACEUTICAL COMPANY LIMITED, Plaintiff, v. ANNORA PHARMA PRIVATE LIMITED, Defendant. Civil Action No. _____ COMPLAINT FOR PATENT INFRINGEMENT (Filed Electronically) Plaintiff Takeda Pharmaceutical Company Limited ("Plaintiff" or "Takeda"), by its attorneys, for its complaint against Annora Pharma Private Limited ("Defendant" or "Annora") alleges as follows: NATURE OF THE ACTION 1. This is a civil action for infringement of United States Patent No. 12,661,368 (the "'368 patent") (the "Patent-in-Suit"), owned by Takeda, under the patent laws of the United States. Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 2 of 11 PageID: 2 States, 35 U.S.C. §100, et seq. This action arises from Annora's submission of Abbreviated New Drug Application ("ANDA") No. 221113 ("Annora's ANDA") to the United States Food and Drug Administration ("FDA") seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of LIVTENCITY® prior to the expiration of the Patent-in-Suit. THE PARTIES 2. Takeda is a corporation organized and existing under the laws of Japan, having an office and place of business at 1-1, Doshomachi 4-chome, Chuo-ku, Osaka, Japan. 3. On information and belief, Annora is a corporation organized and existing under the laws of India, having a principal place of business at Sy. No. 261, Plot Nos. 13 and 14, Gummadidala Mandal, Sangareddy Dist., Telangana State, 502313, India. THE PATENT-IN-SUIT 4. On June 23, 2026, the United States Patent and Trademark Office duly and lawfully issued the '368 patent, entitled "Maribavir Isomers, Compositions, Methods of Making and Methods of Using." A copy of the '368 patent is attached as Exhibit A. THE LIVTENCITY® DRUG PRODUCT 5. LIVTENCITY® is a cytomegalovirus ("CMV") pUL97 kinase inhibitor indicated for

the treatment of adults and pediatric patients (12 years of age and older and weighing at least 35 kg) with post-transplant CMV infection/disease that is refractory to treatment (with or without genotypic resistance) with ganciclovir, valganciclovir, cidofovir, or foscarnet. 6. Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the Patent-in- Suit is listed in the FDA publication titled “Approved Drug Products with Therapeutic Equivalence Evaluations” (the “Orange Book”) with respect to LIVTENCITY®. 7. The claims of the Patent-in-Suit cover, inter alia, methods of using maribavir.

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1.

The FDA-approved labeling for LIVTENCITY® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to orally administer LIVTENCITY® according to one or more methods claimed in the Patent-in-Suit. JURISDICTION AND VENUE 9. This action arises under the patent laws of the United States, 35 U.S.C. §§ 100, et seq., and this Court has jurisdiction over the subject matter of this action under 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202. 10. On information and belief, Annora is in the business of, among other things, developing, manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District. 11. On information and belief, Annora prepares and submits ANDAs to the FDA, including Annora’s ANDA. The Orange Book identifies “ANNORA PHARMA PRIVATE LIMITED” as the holder of an ANDA for more than one hundred generic prescription products. On information and belief, Annora is the ANDA holder for generic pharmaceutical products that Annora sells and/or distributes throughout the United States. 12. On information and belief, Annora derives substantial revenue, directly or indirectly, from selling generic pharmaceutical products throughout the United States, including in this Judicial District. 13. On information and belief, Annora will work towards the regulatory approval, manufacturing, use, importation, marketing, offer for sale, sale, and distribution of generic pharmaceutical products, including those described in Annora’s ANDA, throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the Patent- in-Suit.

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1. On information and belief, Annora intends to benefit directly if Annora’s ANDA is approved, including by participating in the manufacture, importation, distribution, and/or sale of the generic drug product that is the subject of Annora’s ANDA.
2. On information and belief, this Judicial District is a likely destination for the generic drug product described in Annora’s ANDA.
3. This Court has personal jurisdiction over Annora because, inter alia, it: (1) has purposefully availed itself of the privilege of doing business in the State of New Jersey; and (2) maintains extensive and systematic contacts with the State of New Jersey, including through the marketing, distribution, and/or sale of generic pharmaceutical drugs in New Jersey (see, e.g., supra ¶¶ 10-12).

4.

In the alternative, this Court has personal jurisdiction over Annora because the requirements of Federal Rule of Civil Procedure 4(k)(2)(A) are met, as (a) Plaintiff’s claims arise under federal law;

(b) Annora is a foreign defendant not subject to general personal jurisdiction in the courts of any state; and (c) Annora has sufficient contacts with the United States as a whole, including, but not limited to, preparing and submitting an ANDA to the FDA and/or manufacturing and/or selling pharmaceutical products distributed throughout the United States, such that this Court's exercise of jurisdiction over Annora satisfies due process. 18. This Court also has personal jurisdiction over Annora because, inter alia, it has committed an act of patent infringement under 35 U.S.C. § 271(e)(2), and on information and belief, Annora intends a future course of conduct that includes acts of patent infringement in New Jersey. These acts have led and will continue to lead to foreseeable harm and injury to Plaintiff in New Jersey and in this Judicial District.

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1. On information and belief, Annora has previously invoked, stipulated, and/or consented to personal jurisdiction in this Judicial District in numerous prior patent cases.
2. Annora has previously been sued in this Judicial District, has availed itself of New Jersey courts (including this Court) through the assertion of counterclaims in suits brought in New Jersey (including this Court), and has not challenged personal jurisdiction in New Jersey. See, e.g., Takeda Pharm. Co. Ltd. v. Annora Pharma Private Ltd., Civil Action No. 26-9729 (D.N.J.); Takeda Pharm. Co. Ltd. v. Annora Pharma Private Ltd., Civil Action No. 26-1780 (D.N.J.); Azurity Pharm., Inc. v. Annora Pharma Private Ltd., Civil Action No. 24-8809 (D.N.J.); Azurity Pharm., Inc. v. Annora Pharma Private Ltd., Civil Action No. 23-18420 (D.N.J.); Rigel Pharm., Inc. v. Annora Pharma Private Ltd., et al., Civil Action No. 22-4732 (D.N.J.); Celgene Corp. v. Annora Pharma Private Ltd., et al., Civil Action No. 18-11220 (D.N.J.).
3. Venue is proper in this Judicial District pursuant to 28 U.S.C. §§ 1391 and/or 1400(b). ACTS GIVING RISE TO THIS SUIT
- 4.

Pursuant to Section 505 of the Federal Food, Drug, and Cosmetics Act ("FD&C Act"), Annora submitted Annora's ANDA seeking approval to engage in the commercial manufacture, use, sale, or offer for sale in, or importation into, the United States of maribavir tablets, 200 mg ("Annora's ANDA Product") before expiration of the Patent-in-Suit. 23. On information and belief, following FDA approval of Annora's ANDA, Annora, unless enjoined by this Court, will make, use, offer for sale, or sell Annora's ANDA Product throughout the United States, or import such generic product into the United States. 24. On information and belief, in connection with the submission of Annora's ANDA as described above, Annora provided written certifications to the FDA pursuant to Section 505 of

- 5 - Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 6 of 11 PageID: 6 the FD&C Act and 21 U.S.C. § 355(j)(2)(A)(vii)(IV) to other patents covering the same drug product, including at least one that expires on the same date as the expiration of the Patent-in-Suit, indicating its intention to commercially manufacture, use, sell, offer for sale, or import Annora's ANDA Product before expiration of the Patent-in-Suit.
1. Annora's ANDA Product is intended to be a generic version of LIVTENCITY®. COUNT I Infringement of U.S. Patent No. 12,661,368
 - 2.

herein. 27. Annora's submission of ANDA No. 221113 for the purpose of obtaining approval to engage in the commercial manufacture, use, sale, offer for sale, or importation into the United States of Annora's ANDA Product before the expiration of the '368 patent constitutes infringement of one or more claims of that patent under 35 U.S.C. § 271(e)(2)(A). 28. There is a justiciable controversy between the parties hereto as to infringement of the '368 patent. 29. Unless enjoined by this Court, upon FDA approval of Annora's ANDA, Annora will infringe one or more claims of the '368 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing Annora's ANDA Product in or for the United States. 30. Unless enjoined by this Court, upon FDA approval of Annora's ANDA, Annora will induce infringement of one or more claims of the '368 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing Annora's ANDA Product in or for the United States. On information and belief, upon FDA approval of Annora's ANDA, Annora will intentionally encourage acts of direct infringement with knowledge of the '368 patent and knowledge that its acts are encouraging infringement.

- 6 - Plaintiff repeats and realleges the preceding paragraphs above as if fully set forth Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 7 of 11 PageID: 7
- 1. Unless enjoined by this Court, upon FDA approval of Annora's ANDA, Annora will contributorily infringe one or more claims of the '368 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing Annora's ANDA Product in or for the United States. On information and belief, Annora has had and continues to have knowledge that Annora's ANDA Product is especially adapted for a use that infringes one or more claims of the '368 patent and that there is no substantial non-infringing use for Annora's ANDA Product.

2.

Plaintiff will be substantially and irreparably harmed if Annora's infringement of the '368 patent is not enjoined. Plaintiff does not have an adequate remedy at law. 33. This case is an exceptional one, and Plaintiff is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285. PRAYER FOR RELIEF WHEREFORE, Plaintiff respectfully requests the following relief: A. A Judgment that Annora has infringed one or more claims of the Patent-in-Suit by submitting ANDA No. 221113; B. A Judgment that Annora's making, using, selling, offering to sell, or importing Annora's ANDA Product will infringe one or more claims of the Patent-in-Suit; C. An Order, pursuant to 35 U.S.C. § 271(e)(4)(A), that the effective date of FDA approval of ANDA No. 221113 be a date that is no earlier than the later of the expiration of the Patent-in-Suit, or any later expiration of exclusivity to which Plaintiff is or becomes entitled; D. Preliminary and permanent injunctions restraining and enjoining Annora and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with it and/or them, from making, using, offering to sell, selling, or importing Annora's ANDA Product until after the expiration of the Patent-in-Suit, or any later expiration of exclusivity to which Plaintiff is or becomes entitled;

- 7 - Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 8 of 11 PageID: 8 E. A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Annora and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with it and/or them, from practicing any of the subject matter claimed in the Patent-in-Suit, or actively inducing or contributing to the infringement of any claim of the Patent-in-Suit, until

after the expiration of the Patent-in-Suit, or any later expiration of exclusivity to which Plaintiff is or becomes entitled; F. A Judgment that the commercial manufacture, use, importation into the United States, offer for sale, and/or sale of Annora's ANDA Product will directly infringe, induce, and/or contribute to infringement of one or more claims of the Patent-in-Suit; G. To the extent that Annora committed any acts with respect to the subject matter claimed in the Patent-in-Suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Plaintiff damages for such acts; H. If Annora, its officers, agents, attorneys, and employees, and/or those acting in privity and/or concert with it and/or them, engages in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of Annora's ANDA Product prior to the expiration of the Patent-in-Suit, a Judgment awarding damages to Plaintiff resulting from such infringement, together with interest; I. A Judgment declaring that the Patent-in-Suit remains valid; J. A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Plaintiff its attorneys' fees, costs, and expenses incurred in this action; and K. Any such other and further relief as this Court may deem just and proper.

- 8 - Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 9 of 11 PageID: 9 Dated: September 23, 2026 OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 By: s/ Charles M. Lizza Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540 (973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited
- 9 - Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 10 of 11 PageID: 10 CERTIFICATION PURSUANT TO LOCAL CIVIL RULES 11.2 & 40.1 Pursuant to Local Civil Rules 11.2 and 40.1, I hereby certify that the matters captioned Takeda Pharmaceutical Company Limited v. Qilu Pharmaceutical (Hainan) Co., Ltd., Civil Action No. 26-12587 (D.N.J.) and Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-11870 (D.N.J.) (ES)(ADS) are related to the matter in controversy because the matter in controversy involves the same plaintiff, the same patent, and because Annora is seeking FDA approval to market a generic version of the same pharmaceutical product. I further certify that the matters captioned Takeda Pharmaceutical Company Ltd. v. Qilu Pharmaceutical (Hainan) Co., Ltd., Civil Action No. 26-1633 (D.N.J.) (ES)(ADS) (consolidated); Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-4939 (D.N.J.) (ES)(ADS), and Takeda Pharmaceutical Company Limited v. Sun Pharmaceutical Industries Ltd., Civil Action No. 26-2051 (D.N.J.) (ES)(ADS) are related to the matter in controversy because the matter in controversy involves the same plaintiff and because Annora is seeking FDA approval to market a generic version of the same pharmaceutical product. I further certify that the matters captioned Takeda Pharmaceutical Company Limited v. Annora Pharma Private Ltd., Civil Action No. 26-9729 (D.N.J.) (ES)(ADS) and Takeda Pharmaceutical Company Limited v. Annora Pharma Private Ltd., Civil Action No. 26-1780 (D.N.J.) (ES)(ADS) are related to the matter in controversy because it involves the same parties and

because Annora is seeking FDA approval to market a generic version of the same pharmaceutical product.

- 10 - Case 2:26-cv-12588 Document 1 Filed 09/23/26 Page 11 of 11 PageID: 11 I further certify that, to the best of my knowledge, the matter in controversy is not the subject of any other action pending in any court or of any pending arbitration or administrative proceeding. Dated: September 23, 2026 OF COUNSEL: F. Dominic Cerrito Angus Chen Andrew Chalson Elizabeth Murphy Marta Godecki Abigail DeMasi QUINN EMANUEL URQUHART & SULLIVAN, LLP 295 Fifth Avenue New York, New York 10016 Jihong Lou QUINN EMANUEL URQUHART & SULLIVAN, LLP 555 13th Street NW, Suite 600 Washington, D.C. 20004 By: s/ Charles M. Lizza Charles M. Lizza Sarah A. Sullivan Alexander L. Callo SAUL EWING LLP 650 College Road East, Suite 4000 Princeton, NJ 08540 (973) 286-6700 clizza@saul.com Attorneys for Plaintiff Takeda Pharmaceutical Company Limited